

UNIFORMED ACCOUNTABILITY AND CONSTITUTIONAL INTEGRITY POLICY (UACIP)

A Proposal for Statutory Post-Conviction Operational Disqualification of Uniformed Personnel

Submitted to:

The Law Commission of India

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1. EXECUTIVE SUMMARY

This submission proposes a mandatory statutory mechanism to immediately and automatically deactivate the enforcement powers of any uniformed personnel convicted by a trial court for serious criminal offences.

Current law allows convicted uniformed personnel to continue within the system due to:

- Appeal pendency
- Absence of automatic disqualification
- Delayed disciplinary action
- Procedural exploitation through service litigation

This results in a structural contradiction:

A person judicially declared guilty continues to retain the symbolic and institutional power of the State.

To resolve this, the proposed policy mandates:

- Immediate operational disarmament after conviction
- Strict 180-day disciplinary finality
- Appeal protection limited only to personal liberty, not State power
- Central monitoring of convicted personnel
- Restoration mechanism for acquitted individuals

This policy protects constitutional integrity, public trust, and institutional legitimacy.

2. CONSTITUTIONAL CONTEXT

Uniformed services wield powers directly affecting:

- Life
- Liberty
- Bodily integrity
- Civil rights of citizens

These powers flow from Articles 14, 19, 21, 22, and statutory mandates.

However, while criminal law recognizes conviction as a serious legal determination, service law does not enforce immediate operational consequences, creating a gap between:

- Protection offered under Article 311

vs.

- Public safety and constitutional accountability

This imbalance must be corrected through statutory reform.

3. EXISTING PROCEDURAL GAP

Current legal architecture suffers from the following gaps:

- No automatic operational removal after trial court conviction
- Appeals are used to delay service consequences
- Disciplinary proceedings have no uniform timelines
- Convicted personnel remain on service rolls for years
- Some even litigate for promotions or benefits while convicted
- This is not a failure of the Constitution
- it is a failure of statutory design.

4. JUDICIAL PRECEDENT REVEALING SYSTEMIC FAILURE

Case: M. Ganeshkumar vs. Director General of Police & Ors.

Madras High Court – W.P. No. 16940 of 2008 – Judgment dated 16.02.2021

Case Summary:

A Grade-II Police Constable was:

- Accused in the Vachathi custodial assault case
- Convicted and sentenced to one year imprisonment
- Under appeal

Despite conviction, he filed a writ petition seeking promotion.

High Court Holding:

- A convicted individual cannot be considered “clear” for promotion
- Appeal pendency does not negate conviction
- Petition dismissed

Policy Influence:

This case exposes a critical flaw:

A criminally convicted police constable remained inside the system long enough to litigate promotion against the DGP himself.

This confirms the need for:

- Automatic operational disqualification after conviction
- Legislated disciplinary timelines
- Restrictions on appeal-based authority retention

This judgment forms a foundational basis for UACIP.

5. OBJECTIVES OF THE PROPOSED POLICY

- Ensure no convicted person exercises State coercive authority
- Harmonize criminal conviction with uniform service removal
- Maintain constitutional due process
- Mandate strict disciplinary timelines
- Prohibit appeal-based retention of uniformed authority
- Restore public confidence in policing and uniformed institutions

6. POLICY COVERAGE

Applicable to:

- State Police Forces
- Central Armed Police Forces
- Armed Forces (with statutory adaptation)
- Prison & Correctional Services
- Intelligence & Enforcement Agencies
- Any uniformed entity vested with arrest, search, detention, or use-of-force powers

7. CORE POLICY MECHANISM

7.1 Automatic Operational Deactivation (Within 48 Hours of Conviction)

Applicable for convictions involving:

- Violence
- Sexual offences
- Custodial abuse
- Corruption
- Fabrication of evidence
- Organized crime links
- Human rights violations
- Crimes of moral turpitude

Mandatory consequences:

- Surrender of uniform & insignia
- Seizure of identity credentials
- Weapon access revoked
- Suspension of:
 - Arrest powers
 - Search powers
 - Detention powers
 - Command powers

Service tagging as “Convicted Pending Finality”

This is not dismissal, but constitutional suspension of coercive power.

7.2 Time-Bound Disciplinary Finality (180-Day Limit)

- Inquiry begins within 30 days
- Must conclude within 180 days
- Outcomes may include:
 - Dismissal
 - Compulsory retirement
 - Rank reduction

Extensions allowed only by the High Court or Supreme Court.

7.3 Appeal Limitation Clause

Appeal under CrPC:

- Protects personal liberty
- Does NOT protect State authority

Therefore, during appeal pendency:

- No enforcement powers
- No command privileges
- No uniform identity usage

7.4 National Uniformed Integrity Register (Restricted Access)

Includes:

- Name & rank
- Force & posting
- Offence category
- Conviction status
- Appeal status
- Disciplinary stage

Accessible only to:

- Courts
- Government vigilance bodies
- Force headquarters
- Law Commission

Automatically deleted upon final acquittal.

7.5 Finality After Appeal

If appeal is dismissed:

- Immediate dismissal
- Disqualification from future public service
- Pension adjudication as per proportionality

If acquitted:

- Conditional reinstatement
- No back wages
- No seniority restoration
- Mandatory psychological & integrity screening

8. STATUTORY INTEGRATION MECHANISM

To be implemented through:

- Amendments to State Police Acts
- Amendments to Central Armed Police Forces Acts
- Amendments under Article 309
- Harmonization with CrPC Sections 389, 437, 439
- Integration with CCS(CCA) Rules and State Service Rules

9. CONSTITUTIONAL COMPATIBILITY

UACIP fully complies with:

- Article 14 – Equality before law
- Article 21 – Fair, reasonable, lawful process
- Article 311 – Service protection preserved
- Public Trust Doctrine
- Proportionality Doctrine

It reconciles personal liberty with public safety.

10. INTERNATIONAL PRACTICE

Countries including:

- United Kingdom
- Canada
- Germany
- Japan

automatically suspend enforcement powers after conviction, regardless of appeal pendency.

11. PUBLIC SAFETY RISK ANALYSIS

Continuing service association of convicted personnel results in:

- Erosion of public confidence
- Weakening of constitutional morality
- Increased misconduct risk
- Institutional reputation damage
- Exposure to legal liability

12. FINAL RECOMMENDATIONS

The Law Commission is requested to:

- Examine and adopt this proposal
- Draft Model Central Rules for post-conviction disqualification
- Prescribe mandatory timelines for disciplinary completion
- Mandate operational suspension of authority upon conviction
- Ensure uniform implementation across Central and State forces

13. ANNEXURE

Annexure A

M. Ganeshkumar vs. Director General of Police & Ors.

Madras High Court Judgment – 16.02.2021

(Copy attached) separately

DECLARATION

This submission is made in good faith and public interest to strengthen constitutional governance, institutional integrity, and public confidence in uniformed services.